

Witchcraft Allegation (Offense and Punishment) Act, 2015

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 7

Witchcraft Accusation (Offence and Punishment) Act, 2072

Certification and Publication

2072.04.18

Amending Acts

1. Act to Amend Some Nepal Acts, 2072 2072.11.13
2. Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 2075.11.19
3. Act to Amend Some Nepal Acts Relating to the National Code, 2075 2076.01.02

Act Number 4 of the Year 2072

An Act Made to Provide for Offence and Punishment Relating to Witchcraft Accusation

Preamble: Whereas, it is desirable to make necessary provisions regarding making punishable inhuman acts such as accusing any person of being a witch or warlock, treating the accused person cruelly, inhumanly or degradingly, or subjecting him/her to any kind of torture, thereby preventing such acts which exist as social evils and superstitions, and providing protection and justice to the victim of such act;

Now, therefore, the Constituent Assembly, in its capacity as the Legislature-Parliament, has enacted this Act pursuant to Article 83 of the Interim Constitution of Nepal, 2063. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the ?Witchcraft Accusation (Offence and Punishment) Act, 2072?.

(2) This Act shall commence immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act,-

(a) ?Perpetrator? means a person who commits an offence relating to witchcraft accusation.

(b) ?Victim? means a person who is victimised by witchcraft accusation.

(c) ?Witchcraft accusation? means the act of stigmatising any person as a witch, warlock or by any other similar name, and the term also includes any act done under witchcraft accusation pursuant to Section 3.

(d) ?Offence relating to witchcraft accusation? means any act done under witchcraft accusation pursuant to Section 3. Chapter-2

Offence Relating to Witchcraft Accusation

3.

Deemed to have committed offence relating to witchcraft accusation: (1) No person shall do or cause to be done any of the following acts against any person:- (a) Accusing of being a witch or warlock, (b) Abusing or

insulting under witchcraft accusation, (c) Behaving degradingly towards any family member of the person accused of being a witch or warlock, (d) Socially boycotting under witchcraft accusation, (e) Expelling from the place of residence under witchcraft accusation, (f) Accusing of being a witch or warlock through the medium of a shaman, faith healer, magic, spell, exorcism or any other similar means, (g) Beating, piercing, branding, burning, or subjecting a person to torture by using chemical, poisonous or biological substances or in any other manner, feeding excreta, shaving the head and eyebrows, parading with or without stripping naked, or treating cruelly, inhumanly or degradingly in any manner under witchcraft accusation, (h) Causing dismemberment under witchcraft accusation, (i) Breaking, misappropriating or causing damage or loss to any person's property under witchcraft accusation, (j) Attempting to do any act under clauses (a) to (g), abetting any person to do such act, or helping to do such act. (2) If any person holds or causes to be held any assembly with the intention of promoting any act under sub-section (1) or the act of accusing of witchcraft, such person shall be deemed to have committed an offence relating to witchcraft accusation under this Act.

Chapter-3 Information of Offence Relating to Witchcraft Accusation and Protection of Victim

4. Information of offence relating to witchcraft accusation: (1) Any person who learns that an offence relating to witchcraft accusation has been committed, is being committed or is about to be committed at any place shall, as soon as possible, submit a written complaint or oral information to the nearest police office, specifying the details thereof. (2) If any person brings a written complaint under sub-section (1), or gives oral information, the police office shall immediately reduce it into writing, obtain his/her signature or thumb impression, and register it as a complaint. (3) Upon receipt of a complaint or information under sub-section (1), the police office shall, within twenty-four hours, summon or arrest the perpetrator and conduct investigation and inquiry in accordance with the prevailing law. 5.

To arrange for treatment and medical examination: (1) If any victim appears to be physically or mentally disabled, the police office shall take him/her to the nearest hospital or health centre and arrange for immediate treatment. (2) If the victim appears to have suffered any physical injury or mental torture, the police office shall arrange for the medical examination or check-up of the victim by the doctor involved in his/her treatment. (3) If it appears necessary to provide immediate counselling service to the victim, the police office shall make arrangements to provide him/her counselling service by an expert concerned. 6. To arrange security measures: If, upon preliminary investigation of the complaint or information received under Section 4, it appears necessary to provide security to the victim, any family member of the victim or any other person, the police office shall immediately make appropriate security arrangements. 7. Power to arrest or search: (1) If, upon receiving information that any act deemed to be an offence relating to witchcraft accusation has been committed, is being committed or is about to be committed in any house, land or place, there is a likelihood that the offender may abscond, escape or destroy or conceal any evidence related to such offence unless immediate action is taken, a police employee of at least the rank of Assistant Sub-Inspector of Police may, notwithstanding anything contained in the prevailing law, make a report and do the following acts at any time:- (a) Enter, search or take possession of such house, land or place, (b) If any person obstructs or opposes when about to do such act, open or break open doors or windows as necessary and take necessary action, (c) Arrest such person without a warrant or search him/her, (d) Seize or take into possession any evidence or proof found in such house, land or place. (2) While performing an act under sub-section (1), the police employee shall, as far as possible, prepare a panchnama thereof in the presence of amended by the Act to Amend Some Nepal Acts, 2072.a representative of the local level, or if not possible, in the presence of persons present at that place at that time, and a copy of such panchnama shall also be given to the concerned house or landowner. (3) If a woman is to be arrested under sub-section (1), a female police officer shall make the arrest, and if there is no female police officer, the arrest may be made with the assistance of

any other woman. 8.

To proceed after keeping in custody: Notwithstanding anything contained in the prevailing law, if there is reasonable ground to believe from the evidence immediately available that the accused is the offender of the offence relating to witchcraft accusation, the court trying the case shall proceed after keeping him/her in custody. 9. Right to engage separate legal practitioner: The victim may, if he/she so desires, engage a separate legal practitioner to defend the case relating to the offence of witchcraft accusation. 10. Power to issue interim protective order: (1) If, during the course of proceedings of a case under this Act, the court finds it necessary to provide immediate protection to the victim, it may issue an order in the name of the perpetrator, until the final decision of the case, to do the following:- (a) Allow the victim to reside in the house he/she has been living in, provide food and clothing, refrain from beating and maintain courteous and decent behaviour, (b) If the victim has suffered physical or mental injury, arrange for proper treatment or provide appropriate amount for treatment, (c) Refrain from or cause to refrain from abusing, insulting, threatening or behaving indecently, (d) Refrain from going to the victim's place of residence, pathways or office and causing trouble or harassment through any means of communication or in any other manner, (e) Do or cause to do any other necessary and appropriate act for the benefit and safety of the victim. (2) If it appears necessary to provide protection to any family member of the victim or any other person during the course of the case proceedings, the court may issue an appropriate order for the protection of such person. Chapter-4 Punishment and Compensation 11.

Punishment: (1) A person who commits an offence relating to witchcraft accusation under the following clauses of sub-section (1) of Section 3 shall, depending on the gravity of the offence, be punished as follows:- (a) A person who commits an offence under clause (a) shall be liable to imprisonment for six months to two years and a fine of five thousand to twenty thousand rupees, (b) A person who commits an offence under clause (b) or (c) shall be liable to imprisonment for one year to three years and a fine of ten thousand to thirty thousand rupees, (c) A person who commits an offence under clause (d) or (e) shall be liable to imprisonment for two years to five years and a fine of twenty thousand to fifty thousand rupees, (d) A person who commits an offence under clause (f) shall be liable to imprisonment for three years to seven years and a fine of thirty thousand to seventy-five thousand rupees, (e) A person who commits an offence under clause (g) shall be liable to imprisonment for five years to eight years and a fine of fifty thousand to one hundred thousand rupees, (f) A person who commits an offence under clause (h) shall be liable to an additional ten percent punishment in addition to the punishment provided under the prevailing law, (g) A person who commits an offence under clause (j) shall be liable to half the punishment provided for the principal offender. (2) A person who commits an offence under sub-section (2) of Section 3 shall be liable to imprisonment for six months to two years and a fine of five thousand to twenty thousand rupees. (3) If a person who has already been punished for an offence relating to witchcraft accusation again commits the same offence, he/she shall be liable to double the punishment for each subsequent offence. (4) If any person commits an offence relating to witchcraft accusation against a person under his/her protection or guardianship, or if any person holding a public accountability office commits an offence relating to witchcraft accusation, such person shall be liable to an additional twenty-five percent punishment in addition to the punishment provided under sub-section (1). (5) Notwithstanding anything contained in sub-sections (3) and (4), no person shall be punished for an offence relating to witchcraft accusation at one time exceeding fifteen years. (6) If any person breaks, misappropriates or causes damage or loss to any person's property under witchcraft accusation and causes loss, such person shall be punished under clause (a) of sub-section (1) and shall also be ordered to pay to the victim an amount equal to such loss from such person. (7) If any person fails to comply with an order given by the court under Section 10, or if any person obstructs or opposes the work or action relating to the

investigation and inquiry of an offence relating to witchcraft accusation, such person may be liable to a fine of thirty thousand to fifty thousand rupees or imprisonment for three months to nine months or both. (8) Notwithstanding anything contained elsewhere in this Section, if any person commits an offence contrary to this Act, and under the prevailing law a greater punishment is provided than that provided in this Section, the punishment under such law shall apply.

12. Provision relating to compensation: (1) While delivering judgment on a case under this Act, the court shall, considering the nature and gravity of the offence relating to witchcraft accusation, the suffering caused to the victim and the financial status of the perpetrator, order the perpetrator to pay reasonable compensation to the victim.

(2) Notwithstanding anything contained in sub-section (1), if the court considers that the perpetrator is unable to provide such compensation due to his/her poor financial condition, the court may order that the amount as deemed appropriate shall be borne by amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.the concerned local level.

(3) The amount ordered by the court under sub-section (2) shall be provided to the victim by amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.the concerned local level within sixty days.

(4) If the victim dies before receiving the compensation amount under sub-section (1) or (2), such amount shall be provided to his/her minor sons and daughters, and if there are no such sons and daughters, to the spouse, and if there is none, to his/her dependent father and mother. 13. Provision relating to treatment expenses: (1) If the victim has to receive treatment at a hospital or health centre due to physical or mental disability, the entire expenses incurred for treatment and for keeping an attendant shall be borne by the perpetrator.

(2) Notwithstanding anything contained in sub-section (1), if the perpetrator is unable to bear such treatment and attendant expenses due to his/her poor financial condition, and the victim himself/herself or the police office has incurred such expenses, the victim or the police office may claim reimbursement of such amount from the Gender-Based Violence Prevention Fund established under the prevailing law. Chapter-5

Miscellaneous

14. May keep in service centre: (1) If it appears necessary to provide immediate protection to the victim and to arrange separate accommodation during the course of treatment, the police office shall make arrangements to keep him/her in the nearest service centre. Explanation: For the purpose of this Section, "service centre" means the service centre established under Section 11 of the Domestic Violence (Offence and Punishment) Act, 2066.

(2) The service centre may, as necessary, provide legal assistance, counselling or psychological service or financial assistance to the victim kept in the service centre under sub-section (1). 15.

To conduct awareness programmes: amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.The Government of Nepal, Provincial Government and Local Level shall conduct or cause to conduct various types of awareness programmes to prevent the occurrence of offences relating to witchcraft accusation. 16. Government to be plaintiff: The case under this Act shall be a government plaintiff case, and such case shall be deemed to be included in Schedule-1 of amended by the Act to Amend Some Nepal Acts Relating to the National Code, 2075, which was transformed by the Act to

Amend, Consolidate, Harmonize and Repeal Some Nepal Laws, 2074.the National Criminal Procedure Code, 2074. 17. Limitation: A complaint or information shall be submitted within ninety days from the date of commission of the offence relating to witchcraft accusation. 18. Hearing in camera: The hearing of a case deemed to be an offence under this Act shall be held in camera if the victim so requests. 19. Not to bar prosecution under prevailing law: If any act deemed to be an offence under this Act is also deemed to be an offence under any other law, nothing contained in this Act shall be deemed to prevent prosecution and action under such law. 20. To be as per prevailing law: Matters specified in this Act shall be governed by this Act, and other matters shall be governed by the prevailing law. 21. Power to frame rules: The Government of Nepal may frame necessary rules for the implementation of this Act. 22. Repeal and saving: (1) Clause 10(Kha) of the Chapter on Adal of the Country Code is hereby repealed. (2) Serial No. 30(Ka) in Schedule-1 of the Government Case Act, 2049 is hereby deleted. (3) Any act done under the law referred to in sub-section (1) shall be deemed to have been done under this Act.